

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

KIMALI PARKER,

Plaintiff,

- against -

THE NEW YORK CITY POLICE DEPARTMENT, NEW YORK
CITY POLICE DEPARTMENT OFFICER JOEL ROSENTHAL,
NEW YORK CITY POLICE OFFICERS JOHN DOE 1 – 5,

Defendants.

COMPLAINT

JURY TRIAL DEMANDED

Plaintiff appears by his attorney, Bruno Bianchi, and alleges the following as his complaint:

Preliminary Statement

1. Plaintiff KIMALI PARKER brings this action to seek relief for defendants' violations of his rights secured by the Civil Rights Act of 1871, 42 USC § 1983, by the United States Constitution, including the Fourth and Fourteenth amendments, and by the laws and Constitution of the State of New York. Plaintiff seeks compensatory and punitive damages, an award of costs, interest and attorneys fees and such other and further relief this Court deems just and proper.

Jurisdiction and Venue

2. This action is brought pursuant to 42 U.S.C. sections 1983 and 1988, and the Fourth and Fourteenth amendments to the United States constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. Sections 1331 and 1334, this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.

3. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C.

section 1367, over any and all state law claims and as against all parties that are so related to claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

4. Venue in this District is proper under 28 U.S.C. section 1391(b) and (c) in that Defendant CITY OF NEW YORK is administratively located within the Eastern District of New York, and the events giving rise to this claim occurred within the boundaries of the Eastern District of New York.

Jury Demand

5. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

Parties

6. At all times relevant to this action Plaintiff KIMALI PARKER was a resident of Kings County, New York.

7. Defendant CITY OF NEW YORK is and was at all times relevant to this action a municipal corporation created and authorized under the laws of the State of New York.

8. The CITY OF NEW YORK is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

9. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers.

10. Defendant CITY OF NEW YORK was at all times relevant to this case the public employer of defendants ROSENTHAL and JOHN DOE I through JOHN DOE V.

11. Defendants Rosenthal and Doe I-V are and were at all times relevant to this case duly appointed and acting officers, servants, employees and agents of the New York City Police

Department, a municipal agency of defendant CITY OF NEW YORK.

Notice of Claim

12. Plaintiff timely filed a notice of claim with the comptroller of the City of New York, setting forth the facts of Plaintiff's claims against the defendants.

Statement of Facts

13. On May 23, 2013 Plaintiff was double parked in front of his home, located at 1745 President Street, Brooklyn, New York.

14. Plaintiff, who is a dialysis patient and suffers from Lupus, was the holder of a valid driver's license issued by the State of New York.

15. Plaintiff was watching the vehicle for his aunt, who had gone into the building to use the rest room.

16. Defendants Rosenthal and John Doe I-V confronted Plaintiff and proceeded to arrest him although he had not committed any crime.

17. Defendant was charged with two administrative violations: idling in a restricted zone and double parking.

18. Defendant was held in custody for nearly 24 hours before he was released on his own recognizance.

19. During the time he was held in custody Plaintiff was denied proper medical treatment and suffered as a result of the denial for that treatment.

20. Plaintiff filed a notice of claim with the City of New York on September 11, 2012.

21. The conduct of the defendant officers in detaining Plaintiff was totally without probable cause, was excessive and was done maliciously, falsely and in bad faith.

First Cause of Action

22. Plaintiff repeats paragraphs 1 through 21.

22. Beginning on or about May 23, 2012 at the approximate hour of 3:45 p.m. through plaintiff's arraignment on May 24 at approximately 1 p.m. in the County of Kings, State of New York, defendants, by and through their agents, servants and/or employees intentionally handcuffed and imprisoned plaintiff, without any just cause or grounds therefore, and held him against his will under full force of arms until she was released on her own recognizance.

23. This imprisonment was caused by defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that plaintiff was guilty of such crimes, or that defendants had just cause to imprison plaintiff.

24. Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by defendants, their agents, servants and/or employees and was forced to submit to the arrest, imprisonment and confinement entirely against her will.

25. Defendants, their agents, servants and/or employees, as set forth above, intended to confine plaintiff; plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

26. By reason of the above-described false imprisonment and detention of plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body and plaintiff has been otherwise damaged.

Second Cause of Action

27. Plaintiff repeats paragraphs 1 through 26.

28. The arrest was caused by defendants, their agents, servants, and/or employees,

without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that plaintiff was guilty of such crimes, or that defendants had just cause to arrest plaintiff.

29. Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by defendants, their agents, servants and/or employees and was forced to submit to the arrest, imprisonment and confinement entirely against his will.

30. Defendants, their agents, servants and/or employees, as set forth above, intended to arrest and confine plaintiff; plaintiff was conscious of the arrest and confinement; plaintiff did not consent to the arrest; and the arrest and her subsequent confinement was not otherwise privileged.

31. By reason of the above-described false arrest and detention of plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body and plaintiff has been otherwise damaged.

Third Cause of Action

32. Plaintiff repeats paragraphs 1 through 31.

33. These customs, policies and/or practices, or the deliberate indifference of the New York City Police Department were a direct proximate cause of the illegal seizure of plaintiff, the excessive use of force on plaintiff, and the false arrest and malicious prosecution of plaintiff. The City's policies, customs, and/or practices deprived the plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 USCS §§ 1983 and/or 1986.

34. These actions violated the Fourth and Fourteenth Amendments to the Constitution

of the United States of America, violated plaintiff's right to be secure in his person, and that the defendants used excessive, unnecessary, and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

35. In sum, defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and /or police practices which included illegal seizures; excessive or arbitrary use of force; illegal use of police equipment; destruction of evidence; intimidation of witnesses; illegal arrests; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to take police reports of illegal conduct; failing to properly supervise, train, investigate or discipline officers; any and /or all of the above contributing to plaintiff's false arrest, and prosecution, and injuries.

36. Defendants' actions on May 23-24, 2012 were performed under the color of the policies, statute, ordinances, rules and regulations of the City.

37. Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 USCS § 1983 and the Constitution of the State of New York.

38. By reason of the above, plaintiff was injured in mind and body, and he was damaged.

39. By reason of the above, plaintiff has been damaged and seeks punitive damages, costs, attorney's fees, and expert fees as provided by 42 USCS § 1988, and such other relief as

to the Court may seem just and proper.

WHEREFORE, Plaintiff seeks compensatory and punitive damages in the amount to be determined by a jury, costs, interest, attorneys fees and such other and further relief the Court deems necessary and proper.

Dated: May 26, 2015

A handwritten signature in black ink, appearing to read 'Bruno Bianchi', is written over a horizontal line.

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